

1.

CASE #	CASE NAME	HEARING NAME
CVME2502548	ZOLEO VS MEEKS	MOTION FOR ORDER TO DEEM MATTERS ADMITTED AND FOR MONETARY SANCTIONS

Tentative Ruling: Grant—the Requests for Admissions (set one) are deemed admitted. Grant \$2,300 sanctions, payable by Brad Cook to Plaintiff.

2.

CASE #	CASE NAME	HEARING NAME
MCC1900126	HOUSE VS ABTTC, LLC	MOTION TO LIFT STAY AND TO DISMISS

Tentative Ruling: Grant Defendants’ motion – dismiss the action with prejudice per C.C.P. § 583.310. Plaintiff’s motion to lift the stay is moot.

A plaintiff must bring an action to trial within five years after commencement. (C.C.P. § 583.310.) Failure to bring an action to trial within the statutory time requires a mandatory dismissal upon the motion of any party or upon the court’s own motion. (C.C.P. §§ 583.310, 583.360.)

The five-year statute begins to run when the action is commenced against the defendant. (C.C.P. § 583.310.) Commencement of an action includes the filing of complaint or cross-complaint. (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 723.) Furthermore, under Emergency Rule 10(a), the time to bring matters to trial under § 583.310 was extended for 6 months. (*Barron v. Santa Clara County Valley Transportation Authority* (2023) 97 Cal.App.5th 1115, 1124-1125.) Under Government Code § 6803, 6 months is the equivalent of 182 days. As such, Plaintiff had 5 years and 6 months to bring this action to trial.

Plaintiff filed the Complaint on February 1, 2019. By the time this motion is heard on August 14, 2026, this action will be 7 years, 6 months, and 13 days old (2,751 days).

On November 20, 2019, the Court denied Defendants’ petition to compel Plaintiff’s individual claim for wrongful death to arbitration (first cause of action), granted the petition to compel the entirety of Plaintiff’s survival claims to arbitration, and stayed the matter pending the completion of arbitration. (Minute Order, dated November 20, 2019.)

On July 20, 2020, the Court further stayed the action as a result of Defendants’ pending Chapter 11 bankruptcy case. (Order dated July 20, 2020.)

On December 9, 2020, the Plaintiff submitted an ex parte application “for relief of stay and to return the matter back on calendar.” (Minute Order dated December 9, 2020.) The parties stipulated to return the case to active status. (*Id.*) Accordingly, the Court lifted the arbitration stay and bankruptcy stay on December 9, 2020.

Plaintiff argues that because there was no record that arbitration was ever conducted, Plaintiff’s “survival claims remain subject to an unresolved court order requiring arbitration” and are still stayed. (Opp., p. 4.) However, Plaintiff cites to no legal authority in support of this contention, and fails to acknowledge that the Court lifted the stays upon Plaintiff’s own ex parte application for relief from stay. Further, Plaintiff dismissed her second and third causes of action, as well as